Here's What Happens When Your Lawyer Uses ChatGPT

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The lawsuit began like so many others: A man named Roberto Mata sued the airline Avianca, saying he was injured when a metal serving cart struck his knee during a flight to Kennedy International Airport in New York.

When Avianca asked a Manhattan federal judge to toss out the case, Mr. Mata's lawyers vehemently objected, submitting a 10-page brief that cited more than half a dozen relevant court decisions. There was Martinez v. Delta Air Lines, Zicherman v. Korean Air Lines and, of course, Varghese v. China Southern Airlines, with its learned discussion of federal law and "the tolling effect of the automatic stay on a statute of limitations."

There was just one hitch: No one — not the airline's lawyers, not even the judge himself — could find the decisions or the quotations cited and summarized in the brief.

That was because ChatGPT had invented everything.

The lawyer who created the brief, Steven A. Schwartz of the firm Levidow, Levidow & Oberman, threw himself on the mercy of the court on Thursday, saying in an affidavit that he had used the artificial intelligence program to do his legal research — "a source that has revealed itself to be unreliable."

Mr. Schwartz, who has practiced law in New York for three decades, told Judge P. Kevin Castel that he had no intent to deceive the court or the airline. Mr. Schwartz said that he had never used ChatGPT, and "therefore was unaware of the possibility that its content could be false."

He had, he told Judge Castel, even asked the program to verify that the cases were real.

It had said yes.

Judge Castel said in an order that he had been presented with "an unprecedented circumstance," a legal submission full of "bogus judicial decisions, with bogus quotes and bogus internal citations." He ordered a hearing for June 8 to discuss potential sanctions.

Stephen Gillers, a legal ethics professor at New York University School of Law, said the issue was particularly acute among lawyers, who have been debating the value and the dangers of A.I. software like ChatGPT, as well as the need to verify whatever information it provides.

"The discussion now among the bar is how to avoid exactly what this case describes," Mr. Gillers said. "You cannot just take the output and cut and paste it into your court filings."

The real-life case of Roberto Mata v. Avianca Inc. shows that white-collar professions may have at least a little time left before the robots take over.

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